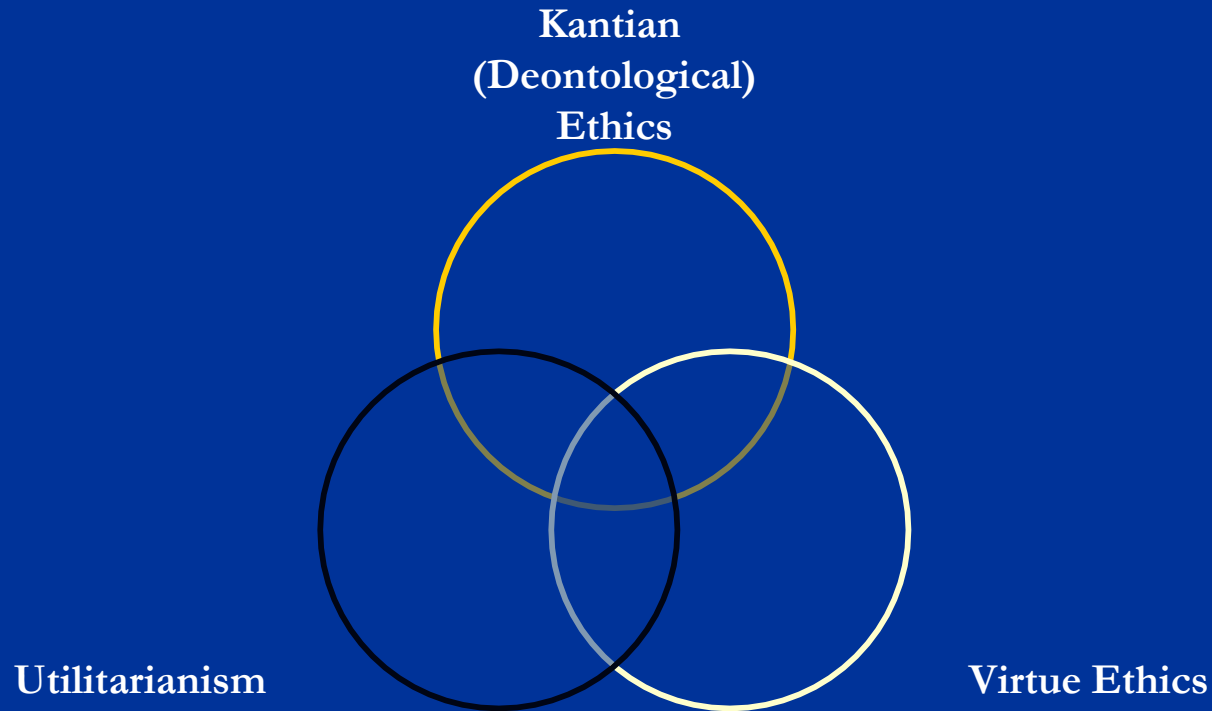


Traditional Moral Theory

Dr. Ruth Pilkington

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Traditional Moral Theory



3 primary areas of emphasis - Each influences contemporary medical ethics, and remains part of our ongoing questioning of right and wrong in human life generally.

Traditional Moral Theory

A moral theory is a conceptual system that attempts to define and guide the best decisions and actions

It should yield insight if it is consulted with the question:

“What ought I to do to be confident that my actions are morally sound?”

Traditional Moral Theory

It is useful on first encountering these theories to try to decide which you find most compelling

You should also try to observe their everyday presence in discussions of morality.

Traditional Moral Theory

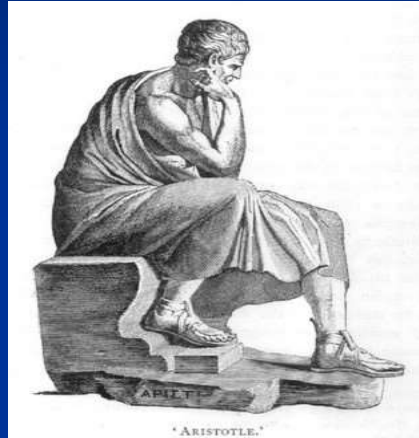
Example: LYING

Consequentialist: Lying is wrong because of the negative consequences produced by lying — though a consequentialist may allow that certain foreseeable consequences might make lying acceptable.

Deontologist: Lying is *always* wrong, regardless of any potential "good" that might come from lying.

Virtue ethicist: focus less on lying in any particular instance and instead consider what a decision to tell a lie or not tell a lie said about one's character and moral behaviour.

VIRTUE ETHICS



Plato (427-347 BC) / Aristotle (384-322 BC)

Virtue Theory I

Focus is on the person's character

Starting point is not “what ought I do?”

but

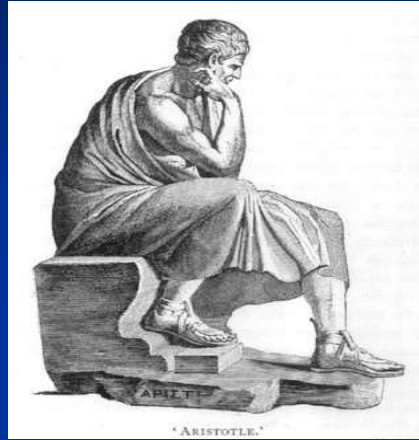
“what kind of person should I be?”

Virtue Theory II

An act is *right* if it and only if it
is what a virtuous person would characteristically
do in the circumstances

A virtuous agent is one who exercises the virtues.

Virtues

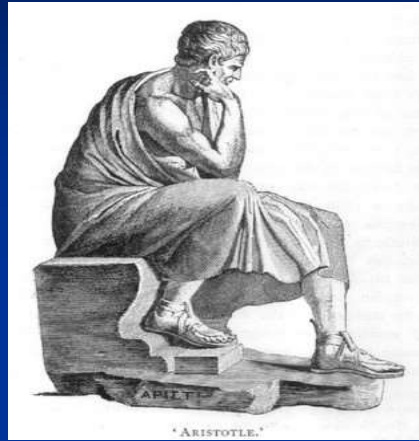


Virtues are attitudes that promote 'human flourishing'

Or

Eudaimonia

Doctrine of the Mean



Virtues lie on the 'golden mean' between two extremes:

*'A Virtue is the mean between excess and deficiency, e.g.
Courage is the mean between Cowardice and
Foolhardiness'*

Which character traits are most important?

Are any of the below irrelevant?

- *A Sense of Humour*
- *Honesty*
- *Ambition*
- *Humility*
- *Compassion*
- *Patience*
- *Loyalty*



- *Diligence*
- *Generosity*
- *Emotional responsiveness*
- *Discernment*
- *Trustworthiness*
- *Fairness*
- *Courage*

Virtue Ethics



*Emphasis on:
the character of the moral agent rather than
rules or consequences*

Virtue Ethics



Less concerned with obligations and rights

Motivational structure and inner dimensions
over outer actions

Right desires and motives

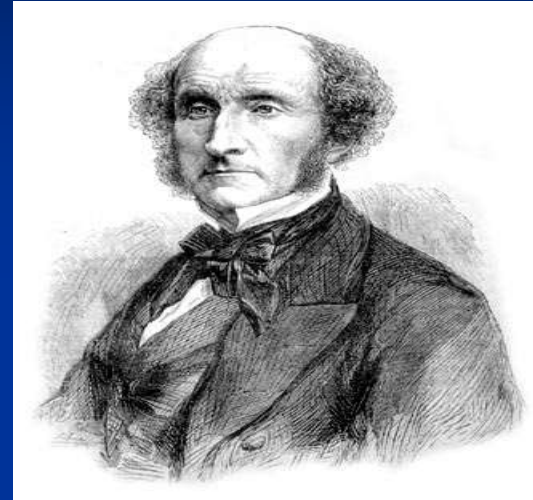
Virtue Ethics



The qualities of:

- a *Good Doctor*, e.g. compassionate, humane, courteous, hard-working.
- a *Good Patient*, e.g. self-control, moderation, reasonable expectations.

CONSEQUENTIALISM



Bentham (1748 - 1832) / Mill (1806-1873)

Consequentialism

An act is right if (and only if) it produces the best consequences

Right and wrong depend *solely* on consequences, as opposed to on intrinsic moral features such as fidelity or truthfulness

A prospective theory, forward-looking: the morally relevant aspects of an act lie in the future, the agent is transcended.

Consequentialism

Thus, under consequentialism,
no acts are intrinsically right or wrong
(e.g. lying, stealing, torture, etc.)

The end justifies the means.

The outcome becomes the deed.

Consequentialism

*What do you think of
consequentialism
so far?*

Utilitarianism

Act Utilitarianism is the most common form.

Stresses

pleasure and pain,
happiness and suffering

Utilitarianism

Two Principles:

The **Principle Of Utility**

The **Greatest Happiness Principle**

Jeremy Bentham 1748-1832



'Pain and Pleasure'

Jeremy Bentham:

"nature has placed mankind under the governance of two sovereign masters, pain and pleasure."

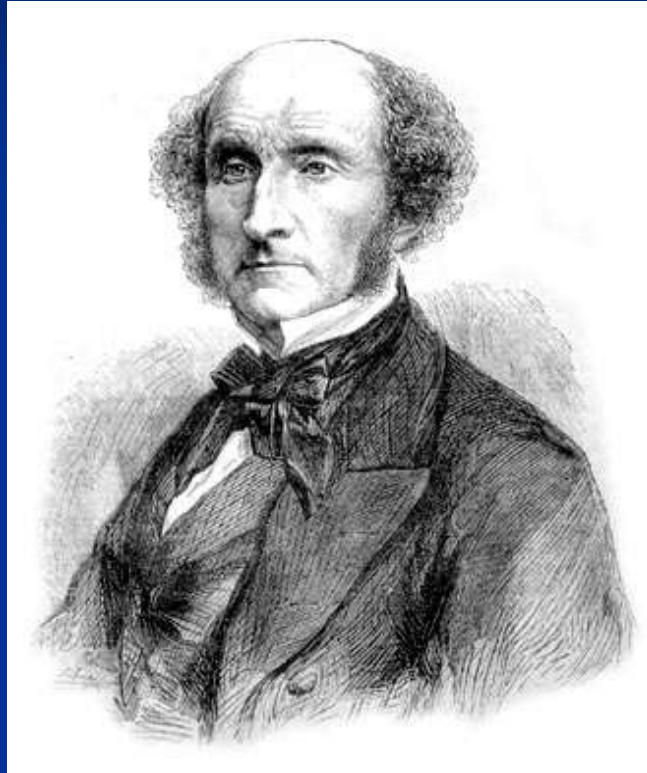
The Principle of Utility

From this, Bentham derived the rule of utility: the good is whatever brings the greatest happiness to the greatest number of people

The Principle of Utility

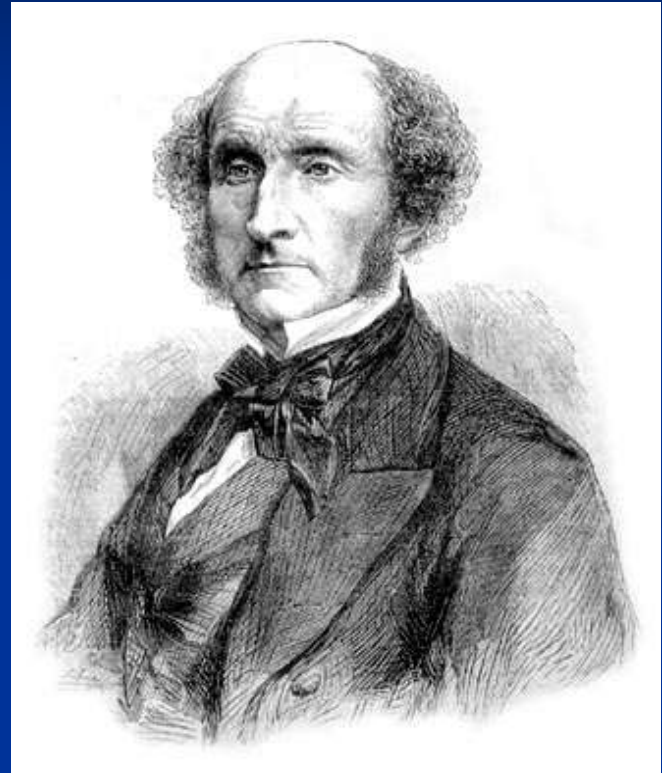
‘Acts are right in proportion as they tend
to promote
pleasure and or happiness;
wrong as they tend to promote the
opposite of happiness’

John Stuart Mill: 1806 - 1873



Mill: the greatest happiness principle

“The ultimate endis an existence exempt as far as possible from pain, and as rich as possible in enjoyments both in point of quantity and quality”



1806 - 1873

The Greatest Happiness Principle

‘One should always act so as to
promote
the greatest happiness of the greatest
number’

The End Justifies The Means?

Motives are unimportant,
their value is instrumental:

almost any motive is acceptable for a choice that
delivers the positive outcome and overall best
results:

Saving a drowning man to gain fame

Feeding the starving with a view to Nobel Glory

The torture of one to save 100 children

Utilitarian Action: A 3-Step Formula

1. On the basis of what we know, we must project consequences of each alternative option (action or omission) open to us
2. Calculate how much happiness or balance of happiness over unhappiness, is likely to be produced by anticipated consequences of action or omission
3. Select that action which, on balance, will produce the greatest amount of happiness for the greatest number of people affected

Utilitarian Moral Theory: Summary

- The moral quality of our decisions is determined entirely by the beneficial consequences following on these decisions
- Motives as morally neutral: Motives for actions are not relevant for the moral evaluation of that action. Motives are simply instrumental means for achieving good ends. Ends justify means.
- Good consequences are understood broadly to mean: outcomes such as pleasure, health, wellbeing, justice, happiness, satisfaction or preferences, etc.

Utilitarian Moral Theory: Summary 2

How ought we live our lives?:

We ought always, in our choices, to work to maximise good consequences and minimise undesirable outcomes. We ought to develop good habits, such as the feeling of sympathy. In doing so, we make more probable the steady pursuit of the goal of promoting human wellbeing.

The Strengths of Utilitarianism

- This theory specifies its goal to increase positive value and minimise evil. This goal on its own can hardly be disputed
- Utilitarianism has a potential answer for most situations, a simple action-guiding rule or principle widely applicable. We have a clear though demanding procedure for arriving at answers about what to do.
- Utilitarians recognise that “the path to hell is paved with good intentions’ and therefore focus moral evaluation on consequences and not on motives the agent holds
- Utilitarianism is not just abstract “up in the clouds moralising”. It gets to the substance of morality with a material core: promote human happiness

Some Problems with Utilitarianism

- It is a contentious issue whether we should be held equally accountable for our so-called actions and omissions. It is impractical to extend the scope of responsibility to include omissions – what we could do but fail to do
- More serious is how we determine the consequences in terms of wellbeing, happiness or pleasure. Critics claim that persons simply choose their understanding of these ends to be achieved

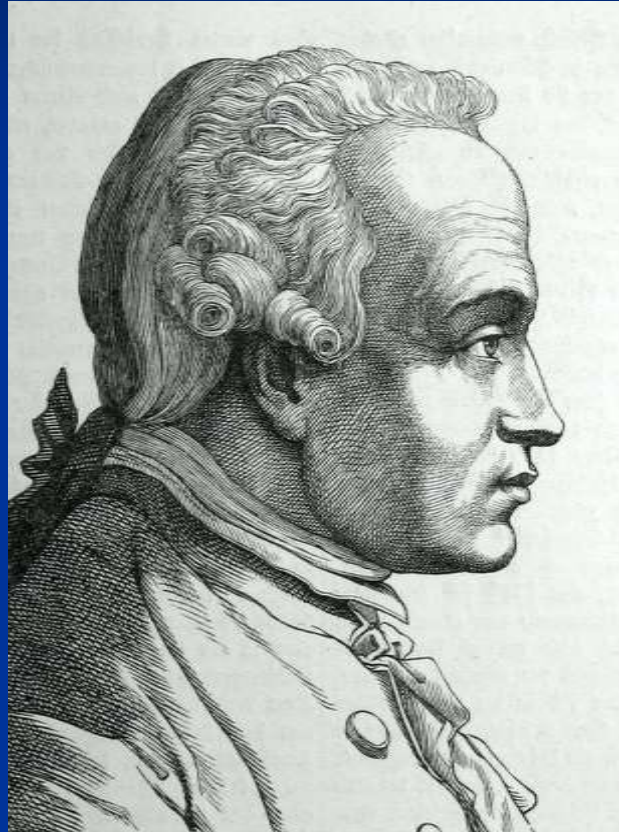
Some Problems with Utilitarianism 2

- There is no unanimous and agreed meaning to pleasures, happiness, the well being of others. This seems to cast doubt on any possible objectivity to these human goods at the heart of any utilitarianism
- Utilitarianism could sanction immoral actions as judged by the standards of common morality. If the most effective way to achieve a maximal utilitarian outcome (secure information to save 50 people) is to perform an immoral act (torture an innocent person) then the theory seems to say not only that the torture is permissible, but that it is morally obligatory. But this requirement of the theory seems itself immoral

Some Problems with Utilitarianism 3

- Utilitarianism demands too much on two fronts:
- The level of skills needed is too stringent: judgement, knowledge, calculation of outcomes from actions and omissions, required imagination to envisage consequences.
- In the interest of maximising outcomes, it requires a violation of one's character and integrity by expecting a level of heroic sacrifice

Immanuel Kant (1724 - 1804)
'The Father of Deontology'



The Idea of Ethical Duty

The centrality of rules, reason and moral motives
(resistance of consequentialism)

Resistance of emotion

The roots of autonomy

Kantian deontology asks us to focus on our motives for acting

The motives one has for acting are morally decisive

The moral motive for any action is to choose always out of respect for the moral law

Duty Vs. Consequences

- Kant adamantly disagreed with utilitarianism, believing it was an irresponsible theory contributing to expediency and compromises with moral evil.
- For deontologists, consequences do not determine right and wrong.
- The correctness of the action matters most, regardless of the possible benefits or harm.
- Some moral obligations are absolute regardless of the consequences.

‘Sparkling Jewel’

Kant:

Even if something fundamentally good produced bad consequences “it would still sparkle like a jewel in its own right, as something that had its full worth in itself”

(Foundation of the Metaphysics of Morals)

Key features of Kantian deontology

- Unlike consequentialism, where the value of moral choices is their instrumentality, deontology finds intrinsic value in good choices
- Whether they achieve good consequences is not essential to their moral quality
- For Kant there is a domain of laws applying to our conduct, involving a nonnegotiable morality, and disclosed to us through reason

Key features of Kantian Deontology 2

He proposed the supreme principle of morality, the “categorical imperative”: a rule that admits no exceptions, one that is binding on all moral beings.

He revered the *will of the rational being*: ‘in which the highest and unconditional good alone can be found’

How should we live?

The Categorical Imperative: Four Duties

1. Act in such a way as you would have others act towards you (the famous “golden rule”)
2. Treat people as ends in themselves and never solely as means to an end (people should never be simply instruments for my own ends)
3. Act so that you treat the will of every rational being as one that makes universal law (respect for the autonomy of others)
4. Act in such a way that you would have all other persons act (rule of universality)

Summary of Kantian Deontology

Defining Features:

1. Actions are intrinsically right or wrong depending on whether or not right principles motivate them
2. Consequences must be considered when making a choice but can never be decisive in measuring the moral quality of an action
3. Natural inclinations (positive or negative) might make moral behaviour more or less difficult but they are not part of the moral appraisal of a person

As Kantians, how should we live?

We ought to work consciously to become persons
of good will

A good will observes four rules or duties:

1. Treat others as you would be treated
2. Treat people as ends, never solely as means
3. Respect the autonomy of others
4. Observe the rule of universality

Kantian Deontology:

Some strengths of the theory

1. Kant explains with insight how we ought to live: to be committed to a moral system of principles and rules
2. His four duties are specific enough to give guidance where needed in many circumstances of living. The theory then is practicable
3. The idea of universality is an undeniably helpful constraint on temptations to act solely out of self interest. People cannot act morally while making themselves privileged or exempt from the duty of universality
4. The argument that good consequences are never sufficient for the moral quality of an action offers fundamental challenges for utilitarian moral theory to respond

Some problems with Deontology

1. Kant's ethics lead to rigidly insensitive rules and so cannot take account of differences between cases
2. Kant identifies ethical duties that are too abstract to apply. If this is so this theory may not be action guiding.
3. Some serious criticisms are directed at Kant's moral psychology. Kant says we ought to act out of the motive of duty and not out of inclination, emotion, sentiments or feeling. In fact, because these latter elements can make us confuse feeling with moral obligations, we should be wary of them. Thus Kant seems to take a negative view on the role of emotions and claims that an action we enjoy cannot be morally worthy

AUTONOMY

auto = 'self'

nomos = 'law'

Moral Self Rule

Having the capacity and the right to self-determination; to formulate and follow a life plan of one's own making

AUTONOMY

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graph TD; A((AUTONOMY)) --- B[ ]; B --- C((Kantian Ethics)); B --- D((John Stuart Mill's Principle of Liberty)); E[Respect for persons as autonomous ends-in-themselves  
Capacity to Reason  
Apply the moral law unto ourselves] --> C; F[Sovereign over own mind and body  
Individual freedom can be restricted only if risk of harm to others] --> D;
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*Respect for persons
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